

PETITION - ILLINOIS VERIFIED MISTAKEN-IDENTITY PETITION UNDER 20 ILCS 2630/5.2

IN THE COURT

(the Illinois judicial circuit where the arrest occurred, addressed to its chief judge)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

ILLINOIS VERIFIED MISTAKEN-IDENTITY PETITION UNDER 20 ILCS 2630/5.2

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Mistaken-identity correction and sealing", under 20 ILCS 2630/5.2, mistaken-identity provisions.

The compiled Illinois profile records the substance of this route as follows. If someone was arrested or convicted under the name of a person whose identity was stolen or used without authorization, the aggrieved person may petition the chief judge of the circuit where the arrest occurred to correct the arrest/conviction and official records by removing their name and substituting the offender's name if known. ("<https://www.ilga.gov/documents/legislation/ilcs/documents/002026300K5.2.htm>")

The committed contract records the timing of this route as: no elapsed waiting period; the verified petition may be filed upon learning of the record.

The committed contract records these conditions on the route: Verified stolen/mistaken identity or qualifying Class 4 prostitution record under the specific statutory relief provisions.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - identity theft report and mismatched identifiers] Identity theft report and mismatched identifiers?

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[C2 - arrest circuit] Arrest circuit?

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[C3 - exact prostitution statute/class] Exact prostitution statute/class?

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[C4 - sentence completion] Sentence completion?

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[C5 - trafficking/victimization facts] Trafficking/victimization facts?

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[C6 - automatic-seal status] Automatic-seal status?

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.....

D. THE REQUEST

The petitioner asks the chief judge to correct the arrest or conviction record and the official records by removing the petitioner's name and substituting the offender's name if it is known.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:runtime-only:IL:criminal-identity-theft-mistaken-identity-relief

FILING INSTRUCTIONS - ILLINOIS VERIFIED MISTAKEN-IDENTITY PETITION UNDER 20 ILCS 2630/5.2

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - ILLINOIS VERIFIED MISTAKEN-IDENTITY PETITION UNDER 20 ILCS 2630/5.2

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Mistaken-identity correction and sealing", under 20 ILCS 2630/5.2, mistaken-identity provisions, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Verified petition; Identity-theft report; Mismatched identifier evidence. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the chief judge of the circuit decides. This is a CORRECTION route, not an expungement route: the compiled profile records the Wilma rule that a person saying 'that was not me, someone used my name' is routed to the criminal-identity-theft correction process and not to ordinary expungement or sealing first.

WHAT YOU DO

- Get the identity-theft report and anything showing the identifiers on the record do not match yours; the committed contract names both as components of this packet.
- Fill every labelled item on the petition from the record itself.
- Complete the opening IN THE ... COURT caption with the name of the Illinois circuit court identified by the arrest record and item C2. If its exact name is unclear, ask the office of that circuit's chief judge before filing.
- Sign and date the petition personally, then take it to the office of the chief judge of the circuit where the arrest occurred.

WHAT YOU DO NOT DO

- Do not file an ordinary expungement or sealing petition first. The compiled profile records in terms that a mistaken-identity fact pattern routes to the correction process rather than to ordinary expungement or sealing.
- Do not fill in the other person's name unless you actually know it. The recorded remedy substitutes the offender's name 'if known', which means it is not required.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the office of the chief judge of the Illinois judicial circuit where the arrest occurred. Ask

before you go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the office of the chief judge of the Illinois judicial circuit where the arrest occurred.

WHEN TO STOP AND GET HELP INSTEAD

- you are not certain the record was made in your name by someone else - that is the whole premise of this route;
- what you actually have is an ordinary conviction or arrest of your own, which is a different Illinois route with a different instrument;
- the record may already have been reached by Illinois automatic sealing, which the committed contract records as a fact this route must collect;
- the matter involves a prostitution record, which the committed contract records as a separate branch of the same decision;
- any immigration question is involved.

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